

Animal Health and Livestock Services Act, 1999

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Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.10.07
2. Some Nepal Acts Amendment Act, 2072 (2015) 2072.11.13
3. Act to Amend Some Nepal Acts to Conform with the Constitution of Nepal, 2075 (2018) 2075.11.19
4. Some Nepal Acts Amendment Act, 2082 (2025) 2082.04.14

Act No. 7 of the year 2054 (1997)

An Act Made to Provide for Animal Health and Veterinary Service

Preamble: Whereas it is expedient to make provision for organizing and developing the livestock business, which occupies an important place in the national economy, and for the healthy production, sale, distribution, export, and import of animals, animal-origin substances, or animal product materials from the perspective of nutritious food and health of the human community;

Therefore, this Act is enacted by the Parliament in the twenty-eighth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Animal Health and Veterinary Service Act, 2054 (1997)."

(2) This Act shall commence in the area and from the date specified by the Government of Nepal by notification published in the Nepal Gazette. As per the notice published in the Nepal Gazette dated 2077.2.2, it has been specified to come into force throughout Nepal from Shrawan 1, 2077. 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) "Animal" means any kind of domestic or wild animal, and the term also includes birds and fish. (b) "Animal-origin substance" means meat, blood, fat, bile, milk, egg, bone, hide, horn, hoof, feather, wool, hair/fur, embryo, semen, gland, dung, urine of an animal, or an unprocessed item made therefrom. (c) "Animal product material" means processed or unprocessed material used in animal health, artificial insemination, or biological product production. (d) "Biologicals" means bacteria or virus-containing medicines, vaccines, or biochemicals used for animal development or animal health. (e) "Quarantine Checkpost" means an animal quarantine checkpost established by the Government of Nepal pursuant to section 3. (f) "Quarantine" means the act of keeping an animal, animal-origin substance, or animal product material together or separately at a specific place for a

prescribed period for examination to ascertain whether such animal, animal-origin substance, or animal product material has any disease. (g) "Quarantine Officer" means a quarantine officer appointed pursuant to section 5. (h) "Quarantine Station" means a place where animals, animal-origin substances, or animal product materials are kept in quarantine for examination. (i) "Contagious Disease" means the diseases listed in the Schedule and other diseases specified by the Government of Nepal by notification published in the Nepal Gazette. (j) "Department" means the Government of Nepal, Department of Livestock Services. (k) "Chief of Office" means the person working as the chief of a deleted by the Act to Amend Some Nepal Acts to Conform with the Constitution of Nepal, 2075. Livestock Service Office or other prescribed office. (l) "Veterinary Inspector" means an officer appointed or designated pursuant to section 25. (m) "Importer" means a person who imports animals, animal-origin substances, or animal product materials from outside Nepal. deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. (n) "Exporter" means a person who exports animals, animal-origin substances, or animal product materials from the Kingdom of Nepal. deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. (o) "Prescribed" or "as prescribed" means prescribed or as prescribed by rules made under this Act. Chapter-2 Provisions Relating to Animal Quarantine 3. Establishment of Quarantine Checkpost: The Government of Nepal shall, by notification published in the Nepal Gazette, establish a quarantine checkpost of a permanent or temporary nature in any area of Nepal. deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. 4.

May Construct Quarantine Station: (1) The Government of Nepal may, by notification published in the Nepal Gazette, construct a quarantine station in the area where a quarantine checkpost has been established pursuant to section 3. (2) Notwithstanding anything contained in subsection (1), the Government of Nepal may also permit the private sector to construct a quarantine station. (3) A person desiring to construct a quarantine station in the non-governmental sector pursuant to subsection (2) must obtain a recommendation letter from the Department. (4) The conditions to be observed and the standards to be adopted while constructing a quarantine station under subsection (1) or (2) shall be as prescribed. 5. Appointment of Quarantine Officer: The Government of Nepal shall appoint a person who has obtained at least a Master's degree in veterinary science as a Quarantine Officer to work as the chief of a quarantine checkpost established pursuant to section 3. 6. Must Be Kept in Quarantine: (1) Animals, animal-origin substances, or animal product materials imported by an importer shall be kept in quarantine for the prescribed period for examination. (2) The concerned importer shall make arrangements for feed, water, and security necessary for the animals kept in quarantine pursuant to subsection (1). (3) If an animal kept in quarantine dies during the examination period, the Quarantine Officer shall order the importer to examine and destroy such dead animal. (4) If an animal kept in quarantine pursuant to subsection (1) dies, the importer shall not be entitled to claim any compensation. (5) The procedure for examining animals, animal-origin substances, or animal product materials kept in quarantine shall be as prescribed. 7. Must Issue Certificate: The Quarantine Officer shall, after examining animals, animal-origin substances, or animal product materials by keeping them in quarantine, provide a quarantine certificate in the prescribed format. 8. Conditions to Be Observed While Exporting or Importing: The conditions to be observed by an exporter or importer while exporting or importing animals, animal-origin substances, or animal product materials shall be as prescribed. 9. Must Import Only Through Quarantine Checkpost: An importer must import animals, animal-origin substances, or animal product materials only through a quarantine checkpost. 10. May Prohibit Import: The Government of Nepal may, by notification published in the Nepal Gazette, prohibit the import of animals, animal-origin substances, or animal product materials having diseases specified by it. 11.

May Prevent Entry: A Quarantine Officer may prevent the entry of imported animals, animal-origin

substances, or animal product materials in the following circumstances:- (a) If information is received that an outbreak of a contagious disease has occurred in the place from which the imported animals, animal-origin substances, or animal product materials were brought, (b) If the importer does not provide a certificate of being free from contagious disease and a health certificate as prescribed for the animals, animal-origin substances, or animal product materials to be imported, (c) Even if the certificate under clause (b) has been provided, if some animals are found to have died from a contagious disease, (d) If the vehicle used to bring the imported animals, animal-origin substances, or animal product materials is found to have contamination of a contagious disease. 12. May Give Orders: (1) The Quarantine Officer may order the return to the country from which they were brought of animals, animal-origin substances, or animal product materials whose entry has been prevented pursuant to section 11. (2) If it appears likely that a contagious disease may spread if the imported animals, animal-origin substances, or animal product materials are left as they are or returned to the concerned country, the Quarantine Officer may order the importer to remove or destroy such animals, animal-origin substances, or animal product materials. 13. May Be Auctioned: (1) If the concerned importer does not take back animals, animal-origin substances, or animal product materials kept at a quarantine station within the prescribed period, the Quarantine Officer may confiscate and auction such animals, animal-origin substances, or animal product materials. The circumstances and procedure for auction shall be as prescribed. (2) If the animals, animal-origin substances, or animal product materials confiscated pursuant to subsection (1) are not deemed suitable for auction, or if no one bids at the auction, the Quarantine Officer may order the removal or destruction of such animals, animal-origin substances, or animal product materials. 14.

Removal or Destruction: (1) After receiving an order for removal or destruction under section 6, 12, or 13, the concerned importer must remove or destroy such animals, animal-origin substances, or animal product materials. (2) If the concerned importer does not remove or destroy the animals, animal-origin substances, or animal product materials pursuant to subsection (1), the Quarantine Officer may himself/herself remove or destroy such animals, animal-origin substances, or animal product materials. (3) All expenses incurred in removing or destroying animals, animal-origin substances, or animal product materials pursuant to subsection (2) shall be recovered from the importer as a government due. 15. Provision Relating to Movement of Animals: If it is discovered that animals in one place of Nepal have contracted a contagious disease, the Chief of Office or the Quarantine Officer may prohibit the movement of such animals to any other place of Nepal. deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Chapter-3 Provisions Relating to Animal Breed Improvement 16. May Issue Notification: (1) The Government of Nepal may, by notification published in the Nepal Gazette, issue a notification requiring that, in any area of Nepal, for the purpose of preventing the extinction of the lineage of any breed of animal existing in Nepal or improving their breed, all male animals of breeds other than the breed of male animal specified in that same notification be castrated and kept. deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Provided that, if it is necessary to keep uncastrated male animals for traditional worship, rituals, or religious ceremonies which have been practiced from time immemorial, nothing contained in subsection (1) shall be deemed to prevent keeping such animals separately in a manner so that they cannot impregnate. (2) If an animal of male breed other than the breed specified pursuant to subsection (1) is found to be kept, the Chief of Office may order the concerned person to castrate such male animal immediately. Chapter-4 Provisions Relating to Industry Establishment and Export-Import 17. Must Obtain Recommendation Letter for Establishing Industry: A person desiring to establish an industry related to the production of biologicals, chicks, fish fry (hatchery), or animal feed or meat processing must obtain a recommendation letter from the prescribed body. 18. Must Obtain Recommendation Letter for Export or Import: A person desiring to export or

import biologicals, chicks, fish fry, or animal feed must pay the prescribed fee and obtain a recommendation letter from the prescribed body. 19.

Must Obtain License: (1) A person desiring to sell and distribute biologicals, chicks, fish fry, or process meat must pay the prescribed fee and obtain a license from the prescribed body. (2) The quality and standards of biologicals, chicks, fish fry, or processed meat sold and distributed pursuant to subsection (1) shall be as prescribed. Chapter-5 Penalties and Appeals 20. Penalties: (1) A person who imports animals, animal-origin substances, or animal product materials in violation of section 9 shall be liable to a fine of up to twenty-five thousand rupees, and if such imported animals, animal-origin substances, or animal product materials are found to have a contagious disease, the fine shall be doubled. (2) A person who violates section 10 shall be liable to a fine of up to ten thousand rupees. (3) A person who fails to comply with an order given pursuant to subsection (1) of section 12 shall be liable to a fine of up to twenty-five thousand rupees. (4) A person who violates this Act or the rules made under this Act, other than as mentioned in subsections (1), (2), and (3), shall be liable to a fine of up to five thousand rupees depending on the gravity of the offense. 21. Investigation and Filing of Cases: (1) The investigation of an offense under this Act shall be carried out by a Technical Assistant of at least Non-Gazetted First Class of the quarantine checkpoint, and after such investigation is completed, the case shall be filed before the officer authorized to hear the case. (2) When filing a case before the officer authorized to hear the case pursuant to subsection (1), the employee conducting the investigation may consult with the government attorney. 22. Authorized Officer to Hear Cases: (1) The authority to hear cases under section 9 shall vest in the concerned Chief District Officer. (2) Except as mentioned in subsection (1), the authority to hear cases under this Act shall vest in the Chief of Office. 23. Government of Nepal to Be Plaintiff: The Government of Nepal shall be the plaintiff in cases under this Act. 24. Amended by the Some Nepal Acts Amendment Act, 2072. Appeal: A person dissatisfied with the decision made by the officer under section 22 may appeal to the District Court within thirty-five days. Chapter-6 Miscellaneous 25.

Appointment of Veterinary Inspector: (1) The Government of Nepal may appoint or designate Veterinary Inspectors in necessary places and institutions to inspect whether the quality of animal medicines or biologicals conforms to the prescribed standards. (2) The duties, functions, and powers of Veterinary Inspectors appointed pursuant to subsection (1) shall be as prescribed. Inserted by the Act to Amend Some Nepal Acts to Conform with the Constitution of Nepal, 2075.25A. Province and Local Level May Carry Out Animal Health and Veterinary Service Related Works: (1) The province and local level may make livestock business organized and developed and provide animal health and veterinary services to farmers. (2) While providing animal health and veterinary services pursuant to subsection (1), the province and local level shall do so subject to the standards under this Act. 26. Delegation of Authority: The Chief of Office, veterinarian, Quarantine Officer, or Veterinary Inspector may, as necessary, delegate to employees subordinate to them the powers vested in them under this Act, except the power to hear cases. 27. May Prohibit Cruelty to Animals: The Government of Nepal may, by notification published in the Nepal Gazette, constitute a committee to prevent cruelty to animals, and the duties, functions, and powers of such committee shall be as specified in that same notification. Amended by the Some Nepal Acts Amendment Act, 2082.28.

Surveillance, Inspection, and Control of Contagious Disease: (1) The Chief of Office must conduct or cause to be conducted surveillance, inspection, examination, and monitoring of animals, animal-origin substances, or animal product materials regularly as determined by the Department or at any time and at any place as necessary, in order to prevent the occurrence of a contagious disease or to prevent a contagious disease appearing in any place from spreading elsewhere. (2) In the course of surveillance, inspection, examination,

and monitoring pursuant to subsection (1), the Chief of Office or an employee deputed from the office may enter the place where animals, animal-origin substances, or animal product materials affected by or at risk of a contagious disease are located, collect samples, and conduct or cause to be conducted laboratory tests of the collected samples. (3) If, during surveillance, inspection, examination, or monitoring pursuant to subsection (1) or (2), a contagious disease is suspected, the Chief of Office may, considering the situation where the contagious disease could spread as an epidemic, prohibit the consumption, sale, distribution, use, or transportation of any animals, animal-origin substances, or animal product materials or other related things from or through the suspected area until the laboratory test report is received. (4) If, upon testing pursuant to subsection (2), a contagious disease is confirmed, the Chief of Office must, considering the place from which the sample was collected as the epicenter, declare the area prescribed as a contagious disease affected area as prescribed, declare the area outside such area as prescribed as an intensive surveillance zone, and carry out works related to contagious disease control. (5) Notwithstanding anything contained in subsection (4), if a technical report is received that a contagious disease has spread to more than one province creating a situation beyond control, the Ministry of Livestock Development of the Government of Nepal shall declare the contagious disease affected area and carry out disease control works in coordination and collaboration with the concerned province and local level. (6) If a contagious disease affected area has been declared pursuant to subsection (3), (4), or (5), the body that declared it may, as long as such declaration remains in force, issue an order prohibiting, controlling, or allowing transaction or transportation only after disinfection of livestock farming, production, processing, consumption, sale, distribution, use, and transportation of animal-origin substances, animal product materials, and other items capable of transmitting the contagious disease, in a manner that causes or spreads the contagious disease. (7) If, during inspection or laboratory testing of animals, animal-origin substances, or animal product materials pursuant to subsections (1) and (2), a contagious disease is found, the Chief of Office or the prescribed authority may, after informing the concerned animal owner thereof, cause or have caused the disinfection of such animals, animal-origin substances, animal product materials, or other items capable of transmitting the contagious disease, and if they cannot be reused after disinfection, cause their destruction or necessary management as prescribed. (8) If loss occurs due to destruction or management of animals, animal-origin substances, or animal product materials pursuant to subsection (7), the Government of Nepal or the Province Government may determine standards and provide relief to the concerned owner for such loss.

Provided that, no relief shall be given for loss incurred from destruction, disposal, or management pursuant to subsection (7) of animals, animal-origin substances, or animal product materials or other related things that were produced, processed, sold, distributed, or transported in violation of the restriction or prohibition imposed pursuant to subsection (4) or (5).

(9) If, during the inspection of animals, animal-origin substances, or animal product materials pursuant to subsection (1), diseases specified by the Government of Nepal by notification published in the Nepal Gazette pursuant to section 10 are found, the Chief of Office shall order the removal or destruction of such animals, animal-origin substances, or animal product materials.

(10) If the concerned owner does not remove or destroy the animals, animal-origin substances, or animal product materials pursuant to subsection (9), the Chief of Office may himself/herself remove or destroy such animals, animal-origin substances, or animal product materials.

(11) All expenses incurred in removing or destroying animals, animal-origin substances, or animal product materials pursuant to subsection (10) shall be recovered from the concerned owner as a government due.

(12) Other provisions relating to contagious disease control shall be as prescribed. 29. Procedure for Destruction: The procedure for destroying dead animals, animal-origin substances, or animal product materials under this Act shall be as prescribed. 30. No Bar: Notwithstanding anything contained elsewhere in this Act, if there is a suspicion that any processed animal-origin substance has contracted a contagious disease, it shall not be deemed to create a bar to keeping such processed animal-origin substance in quarantine for testing. 31. Power to Amend, Add, or Remove in Schedule: The Government of Nepal may, by notification published in the Nepal Gazette, amend, add, or remove items in the Schedule as necessary. 32. To Be According to Prevailing Law: Matters provided for in this Act shall be according to this Act, and other matters shall be according to the prevailing law. 33. Power to Make Rules: The Government of Nepal may make necessary rules for the purpose of implementing this Act. 34. Amendment: The words "animal, bird or" used in various places in the Contagious Disease Act, 2020 (1963) are deleted. Schedule

(Relating to clause (i) of section 2)

1. A 010 Foot and Mouth Disease (FMD)
2. A 011 FMD Virus O
3. A 012 FMD Virus A
4. A 013 FMD Virus C
5. A 014 FMD Virus SAT 1
6. A 015 FMD Virus SAT 2
7. A 016 FMD Virus SAT 3
8. A 017 FMD Virus Asia 1
9. A 018 FMD Virus, untyped
10. A 020 Vesicular Stomatitis (VS)
11. A 021 VS Virus Indiana
12. A 022 VS Virus New Jersey
- 13.

A 023 VS Virus, untyped 14. A 030 Swine Vesicular Disease 15. A 040 Rinderpest 16. A 050 Peste des Petits Ruminants 17. A 060 Contagious Bovine Pleuropneumonia 18. A 070 Lumpy Skin Disease 19. A 080 Rift Valley Fever 20. A 090 Bluetongue 21. A 100 Sheep Pox and Goat Pox 22. A 110 African Horse Sickness 23. A 120 African Swine Fever 24. A 130 Hog Cholera 25. A 140 Fowl Plague 26. A 160 Newcastle Disease Multiple Species Diseases 27. B 051 Anthrax 28. B 052 Aujeszky's Disease 29. B 052 Echinococcosis/Hydatidosis 30. B 055 Heat Water? (Likely "Heartwater" ? keeping as "Hotwater" or check context. The Nepali "???????" likely means Heartwater. Let's translate as "Heartwater" ? but need to be faithful. The original says "???????" which is "Hot Water" but probably a transcription error for Heartwater. However, as translator, we should render the exact term given. But "Hotwater" is unusual. Possibly "Heartwater". I'll translate as "Heartwater" as it's a known disease. But to be safe, I'll keep transliteration: "Hotwater". However, in legal translation, we should translate the intended meaning. I'll use "Heartwater".) Better to keep the original transliteration: "Hotwater" but that might be wrong. Given the list, B 055 is likely Heartwater. I'll use "Heartwater" with a note? But instructions: do not add or remove content. The Nepali text says "???????" which is "Hot Water". I'll keep as "Hotwater" as per text. Actually, re-reading: "???????" could be "Heartwater" (a tick-borne disease). But I'll stick to the literal: "Hotwater". However, common legal translation would correct obvious typo? The instruction says preserve exact formatting and content, do not add or remove. So I'll keep the Nepali term transliterated: "Hotwater". I'll check other entries: "?????? ?????" is screw worm, etc. I'll just translate as given. Let's proceed with "Hotwater". 31. B 056 Leptospirosis 32. B 057

Q Fever 33. B 058 Rabies 34. B 059 Paratuberculosis 35. B 060 Screw Worm (*Cochliomyia hominivorax*) Cattle Diseases 36. B 101 Anaplasmosis 37. B 102 Babesiosis 38. B 103 Bovine Brucellosis (*B. abortus*) 39. B 104 Bovine Genital Campylobacteriosis 40. B 105 Bovine Tuberculosis (*Mycobacterium bovis*) 41. B 106 Cysticercosis (*C. bovis*) 42. B 107 Dermatophilosis 43. B 108 Enzootic Bovine Leukosis 44. B 109 Hemorrhagic Septicemia 45. B 110 Infectious Bovine Rhinotracheitis 46. B 111 Theileriosis 47. B 112 Trichomoniasis 48. B 113 Trypanosomiasis 49. B 114 Bovine Malignant Catarrh 50.

B 115 Bovine Spongiform Encephalopathy Sheep and Goat Diseases 51. B 151 *Brucella ovis* Infection 52. B 152 Caprine and Ovine Brucellosis (*B. melitensis*) 53. B 153 Caprine Arthritis/Encephalitis 54. B 154 Contagious Agalactia 55. B 155 Contagious Caprine Pleuropneumonia 56. B 156 Enzootic Abortion of Ewes 57. B 157 Pulmonary Adenomatosis 58. B 158 Nairobi Sheep Disease 59. B 159 Salmonellosis (*S. abortus ovis*) 60. B 160 Scrapie 61. B 161 Maedi Visna Horse Diseases 62. B 201 Contagious Equine Metritis 63. B 202 Dourine 64. B 203 Epizootic Lymphangitis 65. B 204 Equine Encephalomyelitis 66. B 205 Equine Infectious Anemia 67. B 206 Equine Influenza (Virus Type A) 68. B 207 Equine Piroplasmosis (Babesiosis) 69. B 208 Equine Rhinopneumonitis 70. B 209 Glanders 71. B 210 Horse Pox 72. B 211 Infectious Arthritis of Horses 73. B 212 Japanese Encephalitis 74. B 213 Horse Mange 75. B 215 Surra 76. B 216 Venezuelan Equine Encephalomyelitis Pig Diseases 77. B 251 Atrophic Rhinitis 78. B 252 Cysticercosis (*C. cellulosae*) 79. B 253 Porcine Brucellosis (*B. suis*) 80. B 254 Transmissible Gastroenteritis of Pigs 81. B 255 Trichinellosis 82. B 256 Enterovirus Encephalomyelitis 83. B 257 Porcine Reproductive and Respiratory Syndrome Poultry Diseases 84. B 301 Avian Infectious Bronchitis 85. B 302 Avian Infectious Laryngotracheitis 86. B 303 Avian Tuberculosis 87. B 304 Duck Virus Hepatitis 88. B 305 Duck Virus Enteritis (Duck Plague) 89. B 306 Fowl Cholera 90. B 307 Fowl Pox 91. B 308 Fowl Typhoid (*S. gallinarum*) 92. B 309 Infectious Bursal Disease (Gumboro Disease) 93. B 310 Marek's Disease 94. B 311 Mycoplasmosis (*M. gallisepticum*) 95. B 312 Psittacosis and Ornithosis 96. B 313 Pullorum Disease (*S. pullorum*) Diseases of Other Animals 97. B 501 Leishmaniasis Multiple Species Diseases 98. C 611 Listeriosis 99. C 612 Toxoplasmosis 100. C 613 Melioidosis 101. C 614 Blackleg 102. C 615 Botulism 103. C 616 Other Clostridial Infections 104. C 617 Other Pasteurelloses 105. C 618 Actinomycosis 106. C 619 Intestinal Salmonella Infections 107. C 620 Coccidiosis 108. C 621 Distomatosis (Liver Fluke) 109. C 622 Filariasis Cattle Diseases 110. C 652 Mucosal Disease/Bovine Viral Diarrhea 111. C 653 Vibriotic Dysentery 112. C 654 Warbles Infestation (Hypodermosis) Sheep and Goat Diseases 113. C 701 Contagious Postular Dermatitis 114. C 702 Foot Rot 115. C 703 Contagious Ophthalmia 116. C 704 Enterotoxemia 117. C 705 Caseous Lymphadenitis 118.